

Court No. - 39

Case :- WRIT - C No. - 42310 of 2014

Petitioner :- Dhirendra Singh & 2 Others

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Rajesh Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Heard Sri Rajesh Srivastava, learned counsel for the petitioners and Sri Umesh Chandra, holding brief of Sri Baleshwar Chaturvedi, who has accepted notice on behalf of the respondent no.4-Corporation.

Petitioners have approached this Court challenging the citation dated 2.7.2014 issued by respondent no.3 for recovery of a sum of Rs. 82,976/- from them towards consumption of electrical energy.

Learned counsel for the petitioners contends that petitioners are ready and willing to deposit the entire amount in instalments.

Learned counsel appearing for the respondent-Corporation points out that under Clause 6.14 of the U.P. Electricity Supply Code, 2005, Executive Engineer, D.G.M. and General Manager are empowered with the power to extend the facility of instalments to the consumer, who are in financial distress. The petitioners may approach the relevant authorities alongwith representation in this regard.

Considering the facts and circumstances of the case, writ petition stands finally disposed of with liberty to the petitioners for making representation before the authority concerned in accordance with the provision of Clause 6.14 of the U.P. Electricity Supply Code, 2005 within a period of three weeks from today and in case, any such representation is made, the authority concerned shall proceed to decide the same in accordance with law, expeditiously preferably within a further period of one month from the date of making of the representation.

With the aforesaid observations/directions, the writ petition stands finally disposed of.

Order Date :- 14.8.2014

Anil